Agreement for Services: Sections Five and Six (replacement draft)

Drafting note: bracketed fields are completed per district. Conforming edits to Sections Three and Eight are listed at the end.

Section Five: Student Data Privacy and Security

5.1 Purpose and relationship

The District and the Center for High School Success ("CHSS"), a program of Stand for Children Leadership Center, Inc. ("Organization"), a nonprofit organization exempt under section 501(c)(3) of the Internal Revenue Code, share student data under this Agreement so that CHSS can provide ninth grade success coaching, the CHSS Navigator platform, and on-track analytics to the District's participating schools (the "Services").

In providing the Services, CHSS and Organization act as a "school official" with a "legitimate educational interest" under the Family Educational Rights and Privacy Act (FERPA), 34 C.F.R. § 99.31(a)(1)(i)(B). CHSS performs an institutional service for which the District would otherwise use its own employees, is under the District's direct control with respect to the use and maintenance of education records, and will not redisclose student data except as this Agreement permits. The District's disclosure of education records to CHSS for the Services does not require parental consent under FERPA when the conditions in this Section are met; notice and consent requirements that apply to the screeners are governed by Section 6.7. The District will confirm that its annual notification of FERPA rights includes, among the criteria for school officials with a legitimate educational interest, contractors and organizations to which the District has outsourced institutional services.

5.2 Governing privacy terms

The CHSS Data Privacy and Security Appendix (Appendix A) applies to all handling of student data under this Agreement in every case. At the District's election, recorded in Exhibit D-3, the Parties will also execute the Student Data Privacy Consortium's National Data Privacy Agreement (NDPA) in the version adopted in the District's state, or, where CHSS has executed the NDPA with another district in the same state and signed a General Offer of Privacy Terms (NDPA Exhibit E), the District may accept that offer and deliver notice of acceptance. Where the NDPA has been executed or Exhibit E accepted, the NDPA and its state exhibits control as to any conflict with Appendix A or with any other provision of this Agreement concerning student data, and Appendix A continues to apply as a supplement for every matter the NDPA does not address, including

Sections A.4(d) and (f), A.6, A.8, A.12, A.14, A.15, and A.16. If Appendix A conflicts with the body of this Agreement, Appendix A controls as to student data.

5.3 Definitions

- **Student Data** means any information from the District's education records that identifies, or could be used to identify, a student, including the elements listed in Exhibit D-1. Student Data is Confidential Information.
- **Screening Data** means responses and scores from the CHSS Belonging Screener and Skills Screener administered to students at participating schools. Screening Data is Student Data.
- **De-identified Data** means Student Data or Screening Data from which all personally identifiable information has been removed in accordance with 34 C.F.R. § 99.31(b)(1), such that a reasonable person in the school community who does not have personal knowledge of the relevant circumstances could not identify the student.
- **Aggregate Data** means statistics computed across groups of students, with any group smaller than ten students suppressed.
- **Navigator** means the CHSS web platform through which the Services are delivered.
- **School Team** means the District employees at a participating school who are responsible for ninth grade students, as designated by the District.
- **Coach** means the CHSS employee assigned to support a participating school.
- **Cohort** means the ninth grade students enrolled at a participating school in a school year in which the Services are provided.

5.4 Who may see student-level data

School Team members designated by the District may view student-level records, including names, for their school, to identify students, plan interventions, and monitor progress.

CHSS program, research, and leadership staff, and Organization staff, may view only De-identified Data and Aggregate Data, except that CHSS technical and security personnel designated under Appendix A.7 may access Student Data on a minimum-necessary basis to administer the platform, resolve data-feed problems, and investigate incidents, with every such access logged.

Coaches. In both options the Coach assigned to a participating school is a CHSS employee acting as a school official under Section 5.1, bound by Appendix A, trained annually in FERPA and privacy, under a confidentiality obligation, and subject to the personnel requirements in Appendix A.7. The District may revoke a Coach's access at any time by written notice. *One of the following applies; the District's election is recorded in Exhibit D-3.*

> **Option A (standing access).** The Coach holds a Navigator login and may view student-level records, including names, for the schools the Coach supports, with every access logged.

> **Option B (in-session view; default).** The Coach holds no Navigator login and no standing access to student-level records. The Coach views student-level records, including names, only during a coaching session, on the screen of a School Team member who is logged into Navigator, and does not retain, copy, or record them. Outside sessions the Coach works from Aggregate Data. CHSS keeps a record of each such session (Coach, school, School Team member, date, purpose) and provides it to the District on request; Navigator's own logs record the School Team member's access. The District may elect by written notice to convert a Coach to Option A for a school.

5.5 Permitted use and restrictions

CHSS and Organization will use Student Data solely to provide the Services to the District. CHSS and Organization will not: (a) sell, rent, or trade Student Data; (b) use Student Data for targeted advertising or marketing to students, parents, or staff; (c) build a profile of a student for any purpose other than the Services; (d) use Student Data in any advocacy, lobbying, political, or fundraising activity of Organization or any affiliated entity, including any entity organized under section 501(c)(4); or (e) disclose Student Data to any third party other than a subprocessor listed in Appendix A, except as required by law.

CHSS may create and retain De-identified Data and Aggregate Data to evaluate and improve the program, including following Cohort outcomes over time. CHSS will not attempt to re-identify any student and will not publish any result that could identify a student or, without the District's written consent, the District.

5.6 Return and destruction

On the District's written directive at any time, which may be given on the form in Exhibit D-4 or, where the NDPA applies, on NDPA Exhibit D, CHSS and Organization will return or destroy the Student Data specified within sixty days, on a schedule agreed with the District. Within sixty days after this Agreement ends, CHSS and Organization will destroy or return to the District all Student Data and Screening Data, including copies held by subprocessors, and will certify destruction in writing; copies in encrypted backups expire on the documented rotation, not to exceed ninety days, are never restored to production, and are certified as expired when that date passes. De-identified Data and Aggregate Data are not subject to this subsection.

5.7 Records of this Agreement

CHSS will provide the District an executed copy of this Agreement and Appendix A within ten business days of signature, and written notice at least ninety days before this Agreement or Appendix A expires.

Section Six: Data Access and Sharing

Successful implementation requires timely access to actionable data that allows School Teams, school leaders, the District, and CHSS to identify students needing support, monitor progress, compare outcomes, and assess the effectiveness of supports.

6.1 District contacts and onboarding

The District designates, in Exhibit D-3 at the time it accepts a place in the Accelerator, (a) a technical contact responsible for the data feed, (b) a privacy contact (data privacy officer, technology director, or counsel) responsible for Appendix A, and (c) a program contact for each participating school, and will confirm or replace them within fifteen business days after this Agreement is executed. CHSS will schedule an onboarding call that includes the technical and privacy contacts before this Agreement is routed for signature, and no Student Data is transferred before execution.

6.2 Data provided by the District

The District will provide the elements marked Required in Exhibit D-1 for each Cohort, and may provide the elements marked Optional at its discretion. The District will provide data as it exists in its student information system; CHSS will report apparent errors to the technical contact and will not alter source data.

6.3 Scope of students and years

Student Data covers all ninth grade students at participating schools. For each Cohort, the District will continue to provide the Required elements for those students in subsequent school years through graduation or exit, for as long as this Agreement is in effect, so that on-track outcomes can be followed over time.

6.4 Student identifier

Each record will include the District's student identifier (and the state student identifier where available) so that records can be matched consistently across feeds and years. A District that prefers not to send its student identifier may instead send a stable pseudonymous identifier that it generates and maintains, provided the same identifier is used in every feed. Records carrying a pseudonymous identifier remain Student Data under this Agreement.

6.5 Delivery method and cadence

The District will choose one of the delivery tiers in Exhibit D-2. The target for every District is Tier 1 (automated feed) before the feed goes live. Once the feed is live for Year 1, the District will provide updates weekly during the school year, and a final update within two weeks after the end of the school year and of summer school. A District that cannot yet automate may use Tier 2 (scheduled secure upload) as an interim arrangement, recorded in Exhibit D-3 with an approved cadence not less than monthly and a target date for Tier 1, with CHSS support to get there. [Cadence rule pending CHSS confirmation; Decisions O15.]

6.6 Changes affecting the feed

The District will notify CHSS at least thirty days before a change in student information system, grading scale, or term structure that would affect the feed.

6.7 Screeners

The District will review the full content of the CHSS Belonging Screener and the Skills Screener, item by item, before either is administered, and will determine what parent notice, opt-out, or prior written consent is required by District policy, by the Protection of Pupil Rights Amendment (20 U.S.C. § 1232h), and by state law (in Arizona, A.R.S. §§ 15-104 and 15-117). CHSS will not open collection at a participating school until the District has authorized the instruments in writing and certified that any required notice has been given and any required consent is on file. The District administers the screeners through the School Team. CHSS will not add or change questions without the District's written approval and will provide each versioned instrument for that purpose. Where state law or District policy restricts or prohibits a screener's subject matter, the District may decline a screener in whole or in part, and the Services continue without it. Screening Data is Student Data for all purposes of this Agreement.

6.8 Navigator users

The District will designate which School Team members receive Navigator logins and will notify CHSS within five business days when a user's role changes or ends. District users are responsible for safeguarding their credentials.

6.9 CHSS integration support

CHSS will provide technical assistance to the District's technical contact to establish the data feed, including the file specification and data dictionary, SIS-specific report instructions where CHSS has them, mapping of the District's exports to the specification, a cleanup script where needed, and working sessions until the feed passes the acceptance test in Exhibit D-3. After acceptance, CHSS will provide assistance when the District's student information system, grading scale, or term structure changes. CHSS will monitor the feed, notify the technical contact within one business day when a transfer fails or expected data is missing, and provide a validation report for each load that distinguishes rejected files, rejected rows, and warnings.

6.10 Timeline

No Student Data is transferred before this Agreement and Appendix A (or the NDPA) are executed. During Year 0 the District will name its contacts, elect its delivery tier, and complete the mapping and acceptance test in Exhibit D-3; a test load of current-year data may be made after execution to validate the feed. The feed goes live for the ninth grade Cohort no later than [the first day of Year 1 instruction], and the Parties will complete acceptance by [thirty days before that date].

District Data/IT Liaison: [TO BE COMPLETED] · **Privacy contact:** [TO BE COMPLETED]

Exhibit D-1: Data elements

Element	Required / Optional	Notes
District student identifier (state identifier also requested)	Required	Stable across years; see 6.4
Student name (first, last)	Required	Visible to the School Team only; see 5.4
Grade level, school, enrollment status and dates	Required	Entry and exit dates support Cohort tracking
Course enrollments by term (course code, title, section)	Required	Teacher of record optional
Course marks by grading period and final marks	Required	Include grading scale or pass/fail flag
Credits attempted and earned by term	Required	Core of the on-track calculation
Cumulative GPA	Required	Weighted and unweighted where both exist
Attendance: daily absences and tardies; period absences where available	Required	Chronic absence computed by CHSS
Summer school enrollment, completion, credits, and outcomes	Optional	From the current draft
Demographics (race/ethnicity, gender, EL status)	Optional	For subgroup reporting at the District's election
IEP/504 status; economic status (free or reduced-price meals)	Optional, sensitive	Not needed for Navigator. Many districts treat these as their most protected categories and will decline; CHSS does not ask for them unless the District elects to provide them for subgroup reporting
Discipline (incidents, referrals, outcomes)	Optional	Not required for on-track
Assessments, state test scores, program participation	Optional	
Date of birth	Optional	Only where identifiers are unavailable for matching
Screening Data (Belonging, Skills)	Collected by CHSS under 6.7	

Exhibit D-2: Delivery tiers

Tier	How it works	Who does what	Cadence
Tier 1: Automated feed (target)	The District's SIS or data warehouse exports the specified files on a schedule and transfers them to CHSS by SFTP.	CHSS provides the specification, credentials, and setup support. The District schedules the job.	Nightly or weekly
Tier 2: Scheduled secure upload (interim)	District staff run the specified reports and upload them to the CHSS secure portal, using a CHSS-provided cleanup script where needed.	CHSS provides the report list for the District's SIS and the script. The District uploads on the approved cadence.	Approved interim cadence, not less than monthly, with a dated target for Tier 1
Tier 3: SIS vendor connection (where available)	The SIS vendor provides a read-only API or scheduled export directly to CHSS.	CHSS and the vendor configure it; the District authorizes it.	Nightly

Exhibit D-3: District elections and contacts

Item	District election
Privacy instrument (5.2)	□ Appendix A only □ Appendix A plus state NDPA □ Appendix A plus NDPA Exhibit E acceptance
Coach access (5.4)	□ Option A (standing access) □ Option B (in-session view)
Delivery tier (6.5)	□ Tier 1 □ Tier 2 interim, cadence: [ ], Tier 1 target date: [ ] □ Tier 3
Cohort tracking beyond ninth grade (6.3)	□ Yes □ Ninth grade only
Optional elements provided (D-1)	[list]
Third parties approved to receive Student Data under Appendix A.4(f)	□ None □ [recipient, data shared]
Technical contact	[name, title, email, phone]
Privacy contact	[name, title, email, phone]
Program contact(s)	[name, school]

Onboarding milestones (January cohort)

When	What
Dec 15	Acceptance announced; the District names its technical, privacy, and program contacts as part of acceptance (6.1).

When	What
By mid-Jan	Onboarding call with the technical and privacy contacts; contacts confirmed.
Jan–Mar	Agreement and Appendix A (or NDPA) routed and executed, including board approval where required. Delivery tier elected; specification mapped. No Student Data moves yet.
After execution	Optional test load of current-year data; validation report; corrections.
By [30 days before Year 1 instruction]	Acceptance test passed: a full load of the Required elements, validated, with dashboards reviewed by the School Team.
First day of Year 1 instruction	Feed live for the ninth grade Cohort; weekly updates.

Acceptance test. The feed passes acceptance when a complete load of the Required elements in D-1 for all participating schools is received by the elected tier, validated with no rejected files, with rejected rows and warnings below thresholds agreed in writing, and with on-track indicators reviewed by the District's technical contact against the District's own figures.

Exhibit D-4: Directive for Disposition of Data

To be completed by the District and delivered to CHSS's privacy contact. CHSS will act within sixty days and certify completion in writing.

Field	Entry
District	[name]
Scope of Student Data	□ All Student Data and Screening Data held under this Agreement □ The following only: [schools, cohorts, elements, date range]
Action	□ Destroy □ Return in [format] and then destroy
Timing	□ As soon as practicable, not later than sixty days □ On [date], not later than sixty days after it
Exclusions acknowledged	De-identified Data and Aggregate Data retained under Section 5.5 and Appendix A.10
Certification requested	□ Written certificate of destruction signed by an officer of CHSS, listing systems and backup expiration date
Authorized by	[name, title, signature, date]

Conforming edits elsewhere in the Agreement

- **Section Three, District agrees:** replace "Make grades, attendance, and other agreed-upon key indicators available at least weekly in a user-friendly dashboard or other accessible format" and

"Provide CHSS and participating school teams with timely, actionable data ... in accordance with Sections Six and Seven" with a single bullet: "Provide Student Data as described in Section Six and Exhibit D-1, through the delivery tier elected in Exhibit D-3."

- **Section Three, CHSS agrees:** replace "Protect Confidential Information and use student data only as permitted by this Agreement and applicable law" with "Protect Student Data as provided in Section Five and Appendix A, and provide the integration support described in Section 6.9."
- **Section Eight:** add after the certificate-of-insurance sentence: "Organization maintains cyber liability insurance of not less than $2,000,000 per claim, as further described in Appendix A." [Limit pending Stand's certificate; Decisions O7.]
- **Section Eight, liability:** the disclaimer of consequential damages and the cap at "applicable liability insurance proceeds" must be reconciled with Appendix A. Proposed: "The limitations in this Section do not apply to Organization's obligations under Appendix A, Sections A.4, A.8, and A.10, or to either Party's breach of confidentiality, [or: and Organization's liability for those obligations is limited to $[X]]." [Open decision for Jonah and counsel; Decisions O2.]
- **Section Nine, Notices:** add the privacy contact from Exhibit D-3 as a required notice recipient for matters under Appendix A.
- **Section Two or Section Four, renewal:** add: "The data provisions of this Agreement and Appendix A do not renew automatically. Continuation of Student Data sharing beyond the Term requires a new written agreement signed by both Parties." Section Four already says no financial commitment survives Year 1; this makes the same true of the data.